



File No.: EXP202213655

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings conducted by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint on February 8, 2021, with the data protection authority of Norway (Datatilsynet). The complaint is directed against FUNDACIÓN NORUEGA COSTA BLANCA with NIF G53739256 (hereinafter, "the FOUNDATION"). The reasons for the complaint are as follows:

The school FUNDACIÓN NORUEGA COSTA BLANCA, where the complainant worked, had a directory in the tool ***HERRAMIENTA.1, called "interne ansatte" [Unofficial translation: "internal employees"], which contained documents with reports on meetings and files that specifically and identifiably referred to staff at the center. This directory could be accessed by any employee of the school. The day after the complainant accessed this information, it was deleted, leading the complainant to suspect that the actions of employees in ***HERRAMIENTA.1 were being monitored by the school management without the employees' knowledge.

Along with the complaint, the following is provided:

- Printout of an email sent among school members, excluding the complainant, referencing a workplace accident that the complainant had related to a defect in the schoolyard roof.
- Copy of the minutes of two meetings dated July 18, 2020, in which the complainant is mentioned as a candidate for a position at the school.
- Copy of the minutes of a meeting dated September 23, 2020, discussing aspects regarding the hiring of the complainant and questions posed along with their answers, and an assessment of the complainant's suitability for the position.
- Copy of the minutes of a meeting with an agency dated September 23, 2020, detailing a job offer made to the complainant.

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- Printout of an email dated February 8, 2021, sent by the complainant to other school members. In this email, the complainant indicates that they were able to see that on February 5, 2021, there were documents in the "interne ansatte" folder on Google Classroom that mentioned their workplace accident and dismissal, which could be accessed by any employee of the school, and that many of these documents were deleted on Saturday, February 6, 2021.

- Printout of several screens from ***HERRAMIENTA.1, which the complainant indicates are screenshots of the copies of documents mentioned earlier, including a search in ***HERRAMIENTA.1 for the name of the complainant "A.A.A.". This search shows several documents as results, including one titled "Referat fra 18.6.20", the content of which matches the document provided with the complaint, which is the copy of the minutes of two meetings dated July 18, 2020, in which the complainant is mentioned as a candidate for a position at the school. In this screenshot, it is not possible to determine to whom the ***HERRAMIENTA.1 on which the search was conducted belongs.

SECOND: Through the "Internal Market Information System" (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), aimed at promoting cross-border administrative cooperation, mutual assistance among Member States, and information exchange, the aforementioned complaint was transmitted on December 21, 2022, and was registered with the Spanish Agency for Data Protection (AEPD) the following day. The transfer of this complaint to the AEPD was carried out by the Norwegian data protection authority considering that it does not involve cross-border processing in the terms of Article

4.23 of the GDPR, thus this Agency processes the case as the competent authority under Article 55.1 of the GDPR.

THIRD: On February 13, 2023, in accordance with the then-applicable Article 64 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

On October 18, 2023, an on-site inspection was conducted at the FOUNDATION's premises, obtaining, among other information, the following:

1. The representatives of the school indicated that when employees start working at the school, they must sign a document with information about

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data protection in Norwegian and Spanish. They indicate that there was a model prior to the year 2022, and the inspectors verified that there is a copy of this model signed by an employee on January 19, 2019. This model also contained several annexes with a signature footer regarding the existence of video surveillance, the confidentiality commitment of the workers, and the obligations of the school staff concerning the security of personal data.

They also indicate that this model was modified in the year 2022, and the inspectors verified that there is a copy of this other model signed by another employee on September 20, 2023. This model contains information about information security in the form of rules for the use of passwords, information systems, email, and the internet, and also includes the annex regarding the confidentiality commitment that was already in the model prior to the year 2022.

2. A document in Norwegian regarding consent in data protection signed by A.A.A. upon joining the Foundation, dated August 14, 2014, was submitted. This document contains the following content:

(...)

3. A copy of the Record of Processing Activities was submitted, which includes, among others, the following activities affecting the data of the school staff: "LABOR AND HR" (with a retention period of 6 years due to a legal obligation related to the Commercial Code) and "WORKPLACE VIDEO SURVEILLANCE" (with a maximum retention period of 30 days, unless related to a police investigation or an ongoing judicial or administrative procedure). Furthermore, along with the Record of Processing Activities, a series of technical and organizational security measures are shown.

4. The school representatives stated that the individuals with access to the internal files of the employees are (...).

5. The school representatives stated that ***TOOL.1 is used as a repository for documentation shared among the school staff, and that the documentation uploaded to ***TOOL.1 is not sensitive or restricted and should not include documentation regarding the internal files of the employees, (...).

6. The school representatives indicated that, through a service provider, users of ***TOOL.1 (and the rest of the corporate applications) have access to (...).

A copy of the data processing agreement with the service provider (...), dated October 5, 2023, was submitted. The school representatives indicated that this contract is an extension of a previous contractual relationship that began in 2017 and provided several emails from August and October 2017 confirming the start of the relationship with the provider (...).

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7. At the request of the inspectors, (...) accessed with their credentials (...) ***TOOL.1 (...) and the following searches were conducted:

7.1. The search for "A.A.A." revealed several documents, including the following:

- three documents containing certifications related to allowing workers to travel from their homes to the workplace during the restrictions caused by COVID-19, (...) (which indicate that, at that time, she was the head of primary education and the direct supervisor of A.A.A.).

Access was granted to the folder containing these documents, and it was verified that all employees have access to this folder, and that the folder contains similar certificates for several workers. Of the documents in this folder, only the access permissions to the documents containing the name of the claimant were verified, to which, as previously indicated, only they have access permissions (...).

- several documents whose owner is (...) that contain annual reports about the school in which the name of the claimant appears. The representatives of the Foundation indicate that the purpose of these documents is to send them to the Norwegian Administration.

- no documents containing information about internal personnel files were located within this search.

7.2. An attempt was made to locate the documents attached by the claimant in their complaint through the following searches: "Banan har blivt", "Referat møteXXXX", "18.6.20" and "Konsekvenser for A.A.A.", which are the titles of several of the documents that have already been previously described in the relevant documentation provided by the claimant. After conducting these searches and analyzing the displayed documents, none of the examples of documents attached by the claimant or any internal file with personal data of the employees were located.

7.3. A search for the terms "interne nsatte" and "interne ansatte" was conducted in the "folder" type files without finding any folder with this name. An additional search for the term "ansatte" revealed the folder "Alle ansatte," which (...) indicates that it is the root directory of the repository.

7.4. The folder structure of the repository is displayed, showing records of an educational nature, schedules, and planning of excursions.

LEGAL GROUNDS

I

Competence and procedure

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of

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the digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is established that there is a processing of personal data, given that the FOUNDATION collects and retains, among others, the following personal data of individuals: name and surname, among other processing activities.

The FOUNDATION carries out this activity in its capacity as the data controller, as it is the one that

determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

III

Principle of Presumption of Innocence

In this case, it is claimed that the personal data of the affected individuals, contained in the FOUNDATION's database, were improperly exposed to third parties, since there was a directory in the ***TOOL.1 tool, called "interne ansatte" [Unofficial Translation: "internal employees"], which contained documents with reports on meetings and files that specifically and identifiably referred to personnel of the center. And that this directory could be accessed by any employee of the school.

However, this circumstance has not been verified by this Agency during the on-site inspection dated October 18, 2023.

The above must be connected with the validity in our Administrative Law of the principle of presumption of innocence recognized in Article 24.2 of the Spanish Constitution, in such a way that the exercise of the State's sanctioning power, in its various manifestations, is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions.

The principle of presumption of innocence prevents attributing an administrative infringement when there has not been obtained and verified evidence that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them.

In this case, it is not established that the data of the complaining party were accessible to all employees of the FOUNDATION.

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The Constitutional Court (SSTC 131/2003 and 242/2005, among others) has ruled in this regard by indicating that one of the requirements inherent to the right to the presumption of innocence is that the sanction must be based on acts or incriminating evidence of the conduct attributed, and that the public administration acting bears the burden of proof regarding the commission of the administrative offense and the participation of the accused in it.

For its part, Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector establishes as one of the principles of the sanctioning power the principle of "Responsibility" and determines in this regard that:

"Only individuals and legal entities, as well as, when a law recognizes them the capacity to act, groups of affected individuals, unions, and entities without legal personality and independent or autonomous assets, that are found responsible for the same due to intent or negligence, may be sanctioned for acts constituting an administrative infringement."

Likewise, it must be taken into account what is established in Article 53.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, which states that:

"In addition to the rights provided for in the previous section, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights: (...)

b) To the presumption of non-existence of administrative responsibility until proven otherwise."

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to FUNDACIÓN NORUEGA COSTA BLANCA.

THIRD: TO COMMUNICATE the decision to the data protection authority of Norway, to which the complaint has been submitted, so that it may notify A.A.A.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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